

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

FORMUKLEEN, INC., *Complainant*

v.

TOP SHIPPING SYSTEMS, CORP., *Respondent*.

DOCKET NO. 25-08

Served: June 11, 2026

ORDER OF: Richard AMBROW, *Administrative Law Judge*.

ORDER DENYING WITHOUT PREJUDICE MOTION TO EXTEND

On June 10, 2026, Complainant's representative emailed the Office of Administrative Law Judges ("OALJ") requesting an extension of the deadline to file a joint motion to amend the case schedule, which I will treat as a Motion to Extend ("MTE").

By way of background, on March 20, 2026, I issued an Order Following Status Conference (the "March 20 Order"), which set the remaining schedule for this case:

May 22, 2026	Close of discovery and completion of depositions (if any)
July 6, 2026	Complainant's Opening Brief, Proposed Findings of Fact, and Appendix
August 20, 2026	Respondent's Opposition Brief, Responses to Proposed Findings of Fact, Proposed Findings of Fact, and Appendix
September 14, 2026	Complainant's Reply Brief and Responses to Proposed Findings of Fact

Since the March 20 Order, several discovery issues have arisen in this matter. On June 4, 2026, I held a status conference, and subsequently issued an Order Following Status Conference on June 5, 2026 (the "June 5 Order"). Among other things, I ordered the parties to file a joint motion to amend the case schedule no later than June 10, 2026.

On June 10, 2026, Complainant's representative sent the following email to OALJ:

Pursuant to the June 5, 2026 Order Following Status Conference, the parties conferred regarding an amended remaining discovery and briefing schedule.

The parties believed they had reached agreement on a proposed schedule. However, after the schedule was tentatively agreed, Respondent added availability limitations that materially affect the agreed discovery period,

including Respondent's position that depositions cannot be scheduled during much of the period before the proposed discovery cutoff.

As a result, Complainant does not believe there is currently a final agreement that can be submitted as a joint motion by tonight's deadline.

Complainant respectfully requests a brief extension of time, until June 11, 2026, to either submit an agreed proposed amended schedule or advise the Presiding Officer that the parties were unable to reach agreement.

(See Email of June 10, 2026, from S. Dandan to OALJ and R. Villena).

As noted, I am treating this email as a motion to extend as it requests an order to modify the time for a filing. (46 C.F.R. § 502.69(a) ("In any adjudication, an application or request for an order or ruling not otherwise specifically provided for in this part must be by motion."); see also 46 C.F.R. § 502.102)).

As noted in this case previously, a party must confer before filing a non-dispositive motion, such as a motion to the time for a filing. (46 C.F.R. § 502.71(a)). The MTE does not indicate that Respondent was consulted. Accordingly, the MTE is **DENIED WITHOUT PREJUDICE**.

The parties may submit their joint motion to amend the case schedule after the June 10, 2026, deadline, though such filing is to be accompanied by a request to accept late filing and that shows exceptional circumstances or shows that justice requires the late filing. (46 C.F.R. § 502.102(b)). The parties may make the request to accept the late filing jointly.¹

Richard C.
Ambrow Jr -S

Digitally signed by
Richard C. Ambrow Jr -S
Date: 2026.06.11
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Richard Ambrow
Administrative Law Judge

¹ The parties are strongly encouraged to work together to bring discovery to an end swiftly. Specifically, Respondent is encouraged to make its employees available for deposition without the need of an order. Respondent is also reminded that a default judgment may be entered against a respondent who fails to cooperate with discovery. (*MSC Mediterranean Shipping Co S.A. v. Fed. Mar. Comm'n*, 141 F.4th 222 (D.C. Cir. 2025)).